



United States
Attorney's Office
District of South Carolina



Healthcare Providers and Laboratory Marketers Agree to Pay Over \$1.9M to Settle Kickback Allegations

Thursday, March 6, 2025

For Immediate Release

U.S. Attorney's Office, District of South Carolina

COLUMBIA, S.C. — Gerald Congdon, M.D., of Pawleys Island, South Carolina, Gbenga Aluko, M.D., of Charlotte, North Carolina, and Anup Banerjee, M.D., of Gastonia, North Carolina, and their medical practices, as well as Curis Healthcare Inc., of Chicago, Illinois, Omar Hussain, of South Miami, Florida, and Saeed Medical Group Ltd. d/b/a Alliance Immediate and Primary Care, of Chicago, Illinois, agreed to pay a total of \$1,913,808 to resolve alleged False Claims Act violations arising from their involvement in laboratory kickback schemes. The parties have agreed to cooperate with the Department of Justice's investigations of other participants in the alleged schemes.

The Anti-Kickback Statute prohibits offering, paying, soliciting, or receiving remuneration to induce referrals of items or services covered by Medicare, TRICARE, and other federally funded healthcare programs. The Anti-Kickback Statute is intended to ensure that medical providers' judgments are not compromised by improper financial incentives and are instead based on the best interests of their patients.

The settlements announced today resolve allegations that healthcare providers received kickbacks in return for their referrals to a laboratory in Anderson, South Carolina, and that a marketer and his marketing company received kickbacks from that South Carolina laboratory to arrange for laboratory testing referrals, in violation of the Anti-Kickback Statute. The kickbacks allegedly resulted in the submission of false or fraudulent laboratory testing claims to Medicare and TRICARE in violation of the False Claims Act.

- **Dr. Gerald Congdon, Coastal Urgent Care, LLC, and Coastal Wellness Center, LLC.** Dr. Congdon and his medical practices in Pawleys Island and Myrtle Beach, South Carolina agreed to pay \$400,000 to resolve allegations that from May 2016 to November 2021, they received thousands of dollars in remuneration disguised as purported office space rental and phlebotomy payments from the South Carolina laboratory in return for ordering testing.

- **Dr. Gbenga Aluko and Eagle Medical Center, PC.** Dr. Aluko and his medical practice in Charlotte, North Carolina agreed to pay \$250,000 to resolve allegations that from May 2016 to November 2021, they received thousands of dollars in remuneration disguised as purported office space rental, phlebotomy, and toxicology payments from the South Carolina laboratory in return for ordering testing.
- **Dr. Anup Banerjee and Gastonia Medical Specialty Clinic P.A.** Dr. Banerjee and his medical practice in Gastonia, North Carolina agreed to pay \$206,000 to resolve allegations that from April 2017 to November 2021, they received thousands of dollars in remuneration disguised as purported office space rental and phlebotomy payments from the South Carolina laboratory in return for ordering testing.
- **Omar Hussain and Curis Healthcare Inc.** Hussain and his marketing company agreed to pay \$817,808 to resolve allegations that from April 2020 to August 2021, Hussain and his company received commissions from the South Carolina laboratory as independent contractors based on the volume and/or value of the Medicare and TRICARE referrals for laboratory testing that they arranged for and/or recommended.
- **Saeed Medical Group Ltd., Omar Hussain, and Curis Healthcare Inc.** Saeed Medical Group and Hussain and his marketing company agreed to pay \$240,000 to resolve allegations that from April 2020 to August 2021, Saeed Medical Group received thousands of dollars in remuneration in the form of cash payments from Hussain and his company in return for ordering testing from the South Carolina laboratory.

"Integrity must be the standard in our health care system," said Acting U.S. Attorney Brook B. Andrews for the District of South Carolina. "Kickback schemes divert funds and focus away from patients and their medical needs."

"The public puts immense trust in medical professionals, and disdain for the rule of law damages that trust and erodes their credibility," said Steve Jensen, Special Agent in Charge of the FBI Columbia field office. "These settlements should serve as a reminder that the FBI and its partners are committed to holding medical practitioners accountable for kickbacks."

"Kickback schemes undermine medical decision-making and jeopardize the integrity of federally funded health care programs," said Kelly Blackmon, Special Agent in Charge at the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "Our commitment is to safeguard taxpayer-funded health care and the patients who rely on it, and we will rigorously pursue any allegations of False Claims Act violations."

"The trust of the American taxpayer and the wellbeing of our Service members are undermined when laboratories and physicians engage in collusive financial relationships," said Special Agent in Charge Christopher Dillard, Department of Defense Office of Inspector General, Defense Criminal Investigative Service (DCIS), Mid-Atlantic Field Office. "DCIS will continue to work with our law enforcement partners to bring to justice medical providers who illegally enrich themselves by prioritizing kickbacks over patient care."

The settlements were the result of a coordinated effort between the Civil Division's Commercial Litigation Branch, Fraud Section and the U.S. Attorney's Office for the District of South Carolina, with

assistance from HHS-OIG, DCIS, and the FBI. The settlements announced today were handled by Senior Trial Counsel Christopher Terranova in the Civil Division's Commercial Litigation Branch, Fraud Section and Assistant U.S. Attorney Beth C. Warren in the U.S. Attorney's Office for the District of South Carolina. The United States previously resolved allegations that physicians in [South Carolina](#), [North Carolina](#), and [Texas](#) received kickbacks from the same South Carolina laboratory.

The government's pursuit of this matter illustrates the government's emphasis on combating healthcare fraud. One of the most powerful tools in this effort is the False Claims Act. Tips and complaints from all sources about potential fraud, waste, abuse, and mismanagement can be reported to the Department of Health and Human Services, at 1-800-HHS-TIPS (800-447-8477).

The claims resolved by the settlements are allegations only, and there has been no determination of liability.

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Topic

FALSE CLAIMS ACT

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